THE NATIONAL COMPANY LAW TRIBUNAL

BENCH V

AT NEW DELHI

CA (CAA)-55/230/232/ND/2021

Under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF:

SCHEME OF AMALGAMATION

OF

AMRIT GOLD INTRADE PRIVATE LIMITED

...(Transferor Company 1/ Applicant No 1)

AND

OMA INTERNATIONAL PRIVATE LIMITED

...(Transferor Company 2/ Applicant No 2)

AND

Z2A STUDY MATERIAL PRIVATE LIMITED

...(Transferor Company 3/ Applicant No 3)

SPICE INFOTECH LIMITED

...(Transferee Company/ Applicant No 4)

Order Reserved On: 18.11.2021
Order pronouncedon: 00.11.2021

CORAM:

SH. ABNI RANJAN KUMAR SINHA,

HON'BLE MEMBER(J)

SH. AVINASH K. SRIVASTAVA,

HON'BLE MEMBER (T)

PRESENT:

For the Applicant : PCA Abhishek Nahta, Rishabh Sachdeva, Advocate

For the Respondent:

MEMO Of PARTIES

In the Matter of Companies Act, 2013

Section 230 to 232

AND

In the Matter of:

AMRIT GOLD INTRADE PRIVATE LIMITED
Company incorporated under the Companies Act, 1956

Having Registered Office at 405-C, Fourth Floor,
Sky Larg 60 Nehru Place, Near Tara Cinema,
New Delhi-110019
CIN: U51109DL2006PTC349743

(Transferor Company 1/ Applicant No 1)

AND

OMA INTERNATIONAL PRIVATE LIMITED
Company incorporated under the Companies
Act, 1956
Having Registered Office at 41 E-S 505, School Block
Shakurpur, Delhi-110092
CIN: U18101DL2009PTC196723

(Transferor Company 2/ Applicant No 2)

Z2A STUDY MATERIAL PRIVATE LIMITED
Company incorporated under the Companies
Act, 1956
having its Registered Office at S 505, First Floor,
I-E School Block, Shakurpur, Delhi-110092
CIN: U22211DL20139PTC255840

(Transferor Company 3/ Applicant No 3)

SPICE INFOTECH LIMITED
Company incorporated under the Companies
Act, 1956
Having its registered office at C/o Sh. Ashok Kumar Manglik

S-505 Flat No. 2F S/F School BLK Shakurpur
Near Manukamna Mandir, New Delhi 110092
CIN: U72200DL2005PLC139992

(Transferee Company / Applicant No 4)

ORDER

PER SH. AVINASH K. SRIVASTAVA,MEMBER (TECHNICAL)

1. This application has been jointly filed by the Applicant Companies under Sections 230 and 232 of the Companies Act, 2013read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016,duly supported by separate affidavits of the Applicant Companies, for seeking appropriate directions for dispensing with the holding/convening of the meetings of the respective shareholders and creditors of all the Applicant companies for approval of the proposed Scheme of Amalgamation as contemplated between the Applicant companies. The said Scheme of Amalgamation (hereinafter referred to as the "Scheme") has been placed on record along with the joint application.

2. It is represented that the registered office of all the applicant companies is situated in New Delhi and therefore the subject matter of this joint application falls within the Jurisdiction of this Bench.

3. Transferor Company 1was incorporated under the Companies Act, 1956 on 03rd July 2006 in the name and style of **"AMRIT GOLD INTRADE PRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U51109DL2006PTC349743.Its authorized share capital is Rs. 10,00,000/-divided into 1,00,000equity shares of Rs. 10/- each, while its issued, subscribed, and paid-up capital is Rs. 8,50,000/- divided into85000 equity shares of Rs. 10/- each.

4. Transferor Company 2 was incorporated under the Companies Act, 1956 on 08th December 2009 in the name and style of **"OMA INTERNATIONAL PRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U18101DL2009PTC196723. Its authorized share capital is Rs. 50,00,000/-divided into 5,00,000 equity shares of Rs. 10/- each, while its issued,

subscribed, and paid-up capital is Rs. 16,72,500/- divided into 1,67,250 equity shares of Rs. 10/- each.

5. Transferor Company 3 was incorporated under the Companies Act, 1956 on 25th July 2013 in the name and style of **"Z2A STUDY MATERIAL PRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U22211DL20139PTC255840. Its authorized share capital is Rs. 10,00,000/-divided into 1,00,000 equity shares of Rs. 10/- each, while its issued, subscribed, and paid-up capital is Rs. 9,00,000/- divided into 90000 equity shares of Rs. 10/- each.

6. Transferee Company was incorporated under the Companies Act, 1956 on 25th August 2005 in the name and style of **"SPICE INFOTECH LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U72200DL2005PLC139992. Its authorized share capital is Rs. 30,00,000/-divided into 3,00,000 equity shares of Rs. 10/- each, while its issued, subscribed, and paid-up capital is Rs. 10,97,240/- divided into 1,09,724 equity shares of Rs. 10/- each and Rs. 9,00,000 divided into 1,80,000 equity shares of Rs. 5/-each.

7. It is submitted that Applicant Companies 1 to 4 do not have any Secured Creditor and Certificate by Statutory Auditors verifying the list of the Secured as well as unsecured Creditor is placed on record.

8. It is submitted that the Transferor Company 1 has 7 Equity Shareholders and 4unsecured creditors and No secured creditors. The certificate of chartered accountant in respect of creditors has also been placed on record **(Annexure A-9)**.In respect of shareholders and unsecured creditors, prayer has been made for issuance of directions for dispensing the convening of the meeting of the shareholders.

9. The Transferor Company 2 has 10 Equity Shareholders and do not have any secured or unsecured creditor. The certificates of chartered accountant in respect of creditors has also been placed on record. In respect of shareholders, prayer has been made for issuance of directions for dispensing their respective meetings.

10. The Transferor Company 3 has 3 Equity Shareholders and 4 unsecured creditors. Transferor Company 3 do not have any secured creditor. The certificate of chartered accountant in respect of creditors has also been

placed on record. In respect of shareholders and unsecured creditors, prayer has been made for issuance of directions for dispensing their respective meetings.

11. The Transferee Company has 18 Equity Shareholders and 2 unsecured creditors. Transferee Company do not have any secured creditor. The certificates of chartered accountant in respect of creditors has also been placed on record. In respect of shareholders and unsecured Creditors prayer has been made for issuance of directions for dispensing their respective meetings.

12. The equity shareholders of the Applicant Companies 1 to 4 have given their consent affidavit and is placed on record. **(Annexure A-11)**

13. No Objection Certificate of Unsecured Creditors to dispense with the holding of meeting is placed on record.**(Annexure A-10)**

14. We have perused the joint applications and the connected documents/ papers filed herewith including the Scheme of Amalgamation contemplated between the Applicant companies.

15. It is further submitted that the board of directors of all the applicant companies vide separate Board meetings, held on

15.03.2021 respectively have unanimously approved the proposed Scheme of Amalgamation and copies of such board resolutions passed there have been placed on record by the companies.

16. All the applicants have filed their respective Memoranda and Articles of Associations. The applicants have also filed their latest audited financial statements for the year ending 31.03.2020.

17. All the companies have submitted that no investigation proceedings are pending under the provisions of the Companies Act against any of the applicant company. In this regard, a separate affidavit in accordance to Sec 230(2)(a) has been placed on record.

18. Further, it has been stated in the application that the Scheme is not prejudicial to the interests of the shareholders, and creditors of the applicant companies. The Scheme will be beneficial to all the applicant companies and their respective shareholders, and creditors.

19. The certificates of statutory auditors of all the applicant companies confirming that the accounting treatment in the scheme is in compliance of and in conformity with Section

133 of the Companies Act, 2013 have been placed on record.

20. Taking into consideration the application filed jointly by the Applicant Companies the following directions are issued:

A. In relation to Transferor Company 1

i. With respect to Equity Shareholders:

Meeting of the 7equity shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. With respect to secured creditors:

As there is no secured creditor in the Transferor Company 1, the requirement of convening meeting of unsecured creditors does not arise. Hence, directed to be dispensed with as prayed by the applicant.

iii. With respect to unsecured creditors:

Meeting of the 4 unsecured creditor is directed to be dispensed with pursuant to the power under section 230(9) of the Companies Act, 2013. The Consent Affidavit of the all the unsecured creditor has already been placed on record.

B. In relation to Transferor Company 2

i. With respect to Equity Shareholders:

Meeting of the 10 equity shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. **With respect to secured creditors:**

As there is no secured creditor in the Transferor Company 2, the requirement of convening meeting of secured creditors does not arise. Hence, directed to be dispensed with as prayed by the applicant.

iii. **With respect to unsecured creditors:**

As there is no unsecured creditor in the Transferor Company 2, the requirement of convening meeting of unsecured creditors does not arise. Hence, directed to be dispensed with as prayed by the applicant.

C. In relation to Transferor Company 3

i. With respect to Equity Shareholders:

Meeting of the 3 equity shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. **With respect to secured creditors:**

As there is no secured creditor in the Transferor Company 3, the requirement of convening meeting of

secured creditors does not arise. Hence, directed to be dispensed with as prayed by the applicant.

iii. **With respect to unsecured creditors:** Meeting of the 4 unsecured creditor of Transferor Company 3 is directed to be dispensed with as pursuant to the power under section 230(9) of the Companies Act, 2013. The Consent Affidavit of the all the unsecured creditors has already been placed on record.

D. In relation to Transferee Company

i. With respect to Equity Shareholders:

Meeting of the 18 equity shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. **With respect to secured creditors:**

As there is no secured creditor in the Transferee Company, the requirement of convening meeting of secured creditors does not arise. Hence, directed to be dispensed with as prayed by the applicant.

iii. **With respect to unsecured creditors:** Meeting of the 2 unsecured creditor is directed to be dispensed with as pursuant to the power under section

230(9) of the Companies Act, 2013. The Consent Affidavit of the all the unsecured creditor has already been placed on record.

The application stands allowed in the aforesaid terms.

Let the copy of the order be served to the parties.

Sd/-

AVINASH K. SRIVASTAVA
MEMBER (TECHNICAL)

22/12/2021

Sd/-

ABNI RANJAN KUMAR SINHA
MEMBER(JUDICIAL)